

SUMMARY OF INCIDENT

Investigator: Det Carmen D Marsh	Team # 6	Supervisor: Capt. K. Hulton
Date of Report 5/4/92	CCRB No. 9102247	Classification: Force & Discourtesy
Date and Time of Incident 8/20-8/23/91-differ. hrs.	Date and Time Reported to CCRB 8/23/91-0218 hrs.	
Location of Incident Kingston Ave (Crown Heights), Bklyn		Precinct 71

COMPLAINANT	NAME § 87(2)(b)	STREET	CITY, TOWN OR VILLAGE	STATE	ZIP
VICTIM	same as above				
	§ 87(2)(b)				
ATTY	Representing:				

WITNESSES	
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MEMBERS OF THE SERVICE

RANK	NAME	SUBJECT	WITNESS	SHIELD NO.	CMD.	TAX REG. NO.	DUTY STATUS	ASSIGNMENT	RACE
PO	Paccione, John	☒	☐	8825	70	898232	☒ ON ☐ OFF	MOBILIZED	Wh
PO	DiGiacomo, Paul	☒	☐	1132	BSTF	886836	☒ ON ☐ OFF	"	Wh
PO	Brosnan, Francis	☒	☐	27554	MSTF	885299	☒ ON ☐ OFF	"	Wh
PO	Walsh, Daniel	☒	☐	27910	MSTF	893759	☒ ON ☐ OFF	"	Wh
PO	McCarthy, Kevin	☒	☐	781	BxIF	896525	☒ ON ☐ OFF	"	Wh
PO	Ottens, Erich	☒	☐	2594	MSTF	891894	☒ ON ☐ OFF	"	Wh
Det	Sullivan, James	☒	☐	935	TARU	859650	☒ ON ☐ OFF	Video tape	Wh
Det	Gonzalez, Carlos	☒	☐	1861	MNNarc	876424	☒ ON ☐ OFF	"	Hisp
PO	Dimarco, John	☒	☐	1175	60	826340	☒ ON ☐ OFF	"	Wh
Capt.	Powers, Raymond	☒	☐		63	866146	☒ ON ☐ OFF	Escort	Wh

ALLEGATIONS	SOURCE	APPENDIX ENCLOSURE NO.
A-Complainant states subject officer cursed at the crowd.	IR	#5A
B-Complainant states subject officers pushed at the crowd.	"	"
C-Complainant was grabbed & pushed by subject officer.	"	"
D-Complainant states subject officer pushed a male off a bike.	"	#5AB
E-Complainant states that several subject officers cursed at the crowd and harassed them.	"	#5B
F-Complainant states that subject officer removed gun from holster and another subject officer pushed her from behind.	"	"

COMMUNICATIONS TO BE ANSWERED:

☐ P.C. Brief	☐ Mayor's Office	☐ I.A.D. Review	Other (specify) _____
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REPORT OF INVESTIGATION OF CIVILIAN COMPLAINT

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ADDITIONAL REMARKS/COMMENTS (If Necessary)

C.C.R.B. No. 9102247

This complaint arose as a result of the Crown Heights Demonstrations in Brooklyn whereby officers were mobilized for crowd control. The complaint filed by § 87(2)(b) deals with four (4) separate consecutive dates in which she alleges force and discourtesies by several officers. § 87(2)(g)

Of the shield numbers provided, most of them were assigned to three different ranks and a process of elimination was conducted. Requests for each member's assignment revealed those officers interviewed as subject officers. Subject officers have been entered in the system.

Re allegation (E), MOS assigned to #s 2477, 3463 & 207, were not present at Crown Hgts. There is no such shield#7369.

SUMMARY OF FINDINGS AND RECOMMENDATIONS

ALLEGATION	CLASSIFICATION				FINDINGS AND RECOMMENDATIONS
	F	A	D	E	
A			X		CASE CLOSED/UNSUBSTANTIATED " " " " " " " " " " " " " " "
B	X				
C	X				
D	X				
E			X		
F	X				

TOTAL ENCLOSURES

58

INVESTIGATOR'S SIGNATURE

Det C. Marsh

SUPERVISOR'S SIGNATURE

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SHEET "D"

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ALLEGATION (A)

SUMMARY OF INVESTIGATION

C.C.R.B. No. 9102247

Complainant states that on August 21, 1991, subject officer bearing shield number 8825, cursed at the people saying, "Shut the fuck up," and other curses with the work fuck, but unable to recall what was said. (Encl.#5A)

Subject Officer Paccione states he was not assigned to a foot post in the confines of the 71 Pct, but was assigned to a van in which he remained at all times. He denies the allegation. He heard no profanity by any other officer. (Encl.#22A)

ANALYSIS/FINDING (Omit Recommendations)

ALLEGATION (A) UNSUBSTANTIATED

§ 87(2)(g)

Misc 830-D

Complainant states that on August 22, 1991 subject officers bearing shield numbers 1861 & 27554 were pushing the crowd along with other officers that she cannot identify. (Encl.#5A)

Subject Officer Det Gonzalez denies the allegation. He states he told the crowd to move back and disperse. He states no physical contact made between himself and any other person. (Encl.#50)

Subject Officer Brosnan denies the allegation. He states he was assigned to march with the demonstrators. He did not have to contain the crowd in any specific area. He saw no other officer push at the crowd. (Encl.#33A)

ANALYSIS/FINDING (Omit Recommendation.)

ALLEGATION (B) UNSUBSTANTIATED

§ 87(2)(g)

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ALLEGATION (C)

SUMMARY OF INVESTIGATION

C.C.R.S. No. 9102247

Complainant states that subject officer-shield#935 grabbed her by the chest and pushed her. (Encl.#5A)

Subject Officer Det Sullivan states he was assigned to film the arrests at the Crown Hgts demonstrations. He stated that at several times, he had to push some people back away from Det Flynn who was video taping as he (Det Sullivan) watched Det Flynn's back. He cannot recall any specific incident involving a female black, nor anyone by the name of § 87(2)(b). He added that approx 100 arrests were video taped and of course, there was pushing. (Encl. 42A)

Capt. Powers states he did not observe any officer push a female black nor did he see any altercation involving a female black. (encl.#38)

ANALYSIS/FINDING (Omit Recommendations)

ALLEGATION (C) UNSUBSTANTIATED

§ 87(2)(g)

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ALLEGATION (D)

SUMMARY OF INVESTIGATION

C.C.R.B. No. 9102247

Complainant states that subject officer pushed a male black off a bike and that the officer's name is Powers. (Encl.#5AB) She stated that she was unable to get any information about the male black. (Encl.#5AB)

Subject Officer Capt Powers states he does not recall any encounter with a bicyclist and denies pushing any male black off a bike. (Encl.#38)

Officer Brosnan states he saw no officer push a male black off a bike. (Enc#33A)

Det Sullivan states he recalls seeing Capt Powers, but he did not see Capt Powers push anyone off a bike. (encl.#42A)

ANALYSIS/FINDING (Omit Recommendations)

ALLEGATION (D) UNSUBSTANTIATED

§ 87(2)(g)

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ALLEGATION (E)

SUMMARY OF INVESTIGATION

C.C.R.B. No. 9102247

Complainant states that on 8/23/91 several subject officers cursed at the crowd saying, "Get the fuck back," and other profanities with the word fuck. She stated, on the UF245 that subject officer shield #1175, 2477, 781, 7369, 3463, 207, 27910, 1861 and 27554 were harassing the people. During her interview at CCIB, she stated that subject officers shield # 2477, 781, 7369, 2594, 3463, 207 & 27910 cursed at the crowd. (Encls.#1B & 5B)

Subject Officer ^{#1175} D'Amico denies harassing the crowd and did not hear ~~any~~ officer curse at the crowd. (Encl.#55A)

Re shield#2477, all three members of the service assigned to number were not present (PO King, Det Micallef & Sgt Pischera). (Encls.#20BC & 21AB)

Subject Officer McCarthy-shield#781 denies cursing at the crowd and states no other officer cursed at crowd. (Encl.#35)

Re shield#7369-no such shield.

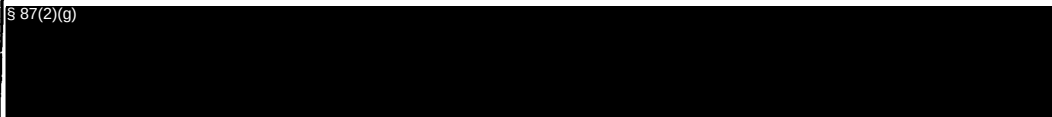
Subject Officer Ottens denies cursing at anyone and did not hear any officer curse. (Encl.#39A)

Re shield#3463-all three MOS were not present (PO Delaney, Det Donohue and Sgt Hart). (Encls.16 & 18ABC)

Re shield#207-Both MOS assigned to # were not present (Det Kuerner & Sgt Aanonsen). (Encls.#24 & 47AB)

Subject Officer Walsh sh#27910 denies cursing at the crowd. He heard no other officer use profanity. (Encl.#34A)

§ 87(2)(g)



ANALYSIS/FINDING (Omit Recommendations)

ALLEGATION (E) UNSUBSTANTIATED

§ 87(2)(g)



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ALLEGATION (F)

SUMMARY OF INVESTIGATION

C.C.R.B. No.9102247

Complainant states that subject officer shield#2594 removed his gun from the holster and subject officer sh#1132 pushed her from behind. (Encl.#5B)

Subject Officer Ottens denies the allegation and saw no other officer push any female. (Encl.#39A)

Subject Officer DiGiacomo states he was directed by Chief Selvaggi to control the demonstrators causing chaos at which time it was necessary to push the crowd back. (Encl.#32)

Officer McCarthy saw no officer remove his gun from holster and no officer push any female. (Encl.#35)

Officer Walsh saw no officer remove his gun from holster nor any officer push a female. (Encl.#34A)

ANALYSIS/FINDING (Omit Recommendations)

ALLEGATION (F) UNSUBSTANTIATED

§ 87(2)(g)

Misc 830-D